TABLE OF CONTENTS

I INTRODUCTION . . . 3

II STATEMENT OF RELEVANT FACTS . . . 4

A The Statutory Framework for Civil Compromise Was the Active Resolution Track in This Case . . . 4

B The Last Substantive Consultation With Appointed Counsel Confirmed the Civil Compromise Track Was Active and Unresolved . . . 4

C Discovery in This Case Has Never Been Established as Complete . . . 5

D The Mechanism of Counsel Deprivation: Contested Withdrawals Granted on Shifting Bases, One Resolved by Ex Parte Off-Record Proceedings . . . 6

E Defendant Has Been Without Counsel for 323 Days as of the Date of This Filing . . . 8

III LEGAL STANDARD . . . 9

A ORS §135.747: The Mandatory Dismissal Statute . . . 9

B *Roberts* Does Not Support the State's Objection — It Forecloses It . . . 9

C The State Cannot Demonstrate Prejudice From a Without-Prejudice Dismissal . . . 10

IV THE DENIAL OF COUNSEL AND THE INCOMPLETE DISCOVERY RECORD INDEPENDENTLY AND CUMULATIVELY SUPPORT DISMISSAL . . . 10

A The Denial of Counsel Directly Caused the Failure to Complete the Resolution Track . . . 10

B The Incomplete Discovery Record Is an Independent Ground Supporting Dismissal and Defeating the State's Objection . . . 10

V RELIEF REQUESTED . . . 12

IN THE CIRCUIT COURT OF THE STATE OF OREGON

FOR THE COUNTY OF WASHINGTON

Case No.: 24CR27775

STATE OF OREGON,
Plaintiff,

vs.

ASHLE' PENN,

Defendant, In Propria Persona.

DEFENDANT'S WRITTEN OPPOSITION TO STATE'S OBJECTION TO DISMISSAL AND MOTION TO DISMISS PURSUANT TO ORS §135.747 AND *STATE v. ROBERTS*, 374 Or. 821 (2026)

Disclosure and Certification Pursuant to UTCR 4.010 and UTCR 1.090

Defendant AshLe' Penn, appearing *in propria persona* after this Court placed her on the unrepresented list, certifies pursuant to UTCR 4.010 and UTCR 1.090 that this motion and memorandum are submitted in good faith; that the legal contentions herein are warranted by existing law or a non-frivolous argument for the extension, modification, or reversal of existing law; that every factual contention has evidentiary support or is specifically identified as likely to have evidentiary support after a reasonable opportunity for investigation; that no known factual misrepresentations are presented; and that all legal authorities cited are drawn from published court opinions, constitutional provisions, or statutory texts.

Nothing in this motion constitutes an admission of any fact underlying the charge in this case or in any related proceeding. All factual representations herein are sourced to the record as produced by the state or as documented by appointed counsel's offices. Defendant expressly reserves all rights, defenses, and objections, including the right to contest every element of the charge at any future proceeding. This document is filed in compliance with the Washington County Supplementary Local Rules (SLR), UTCR Chapter 2 document standards, and UTCR 21.100 *et seq.* (electronic filing). This communication constitutes a special appearance only and shall not be construed as a general appearance or a waiver of any jurisdictional defense, objection to notice, or any other right or objection available to Defendant.

I INTRODUCTION

Defendant AshLe' Penn respectfully submits this written opposition to the state's objection to the dismissal of this case and independently moves for dismissal pursuant to ORS §135.747 and *State v. Roberts*, 374 Or. 821 (2026). The dismissal is mandatory. The state has no cognizable legal grounds on which to object to it. A dismissal without prejudice does not terminate the prosecution — it does not permanently extinguish the state's ability to refile — and it therefore cannot constitute prejudice to the state as a matter of law. The state cannot identify any legally cognizable injury from a non-prejudicial dismissal because none exists.

The delay that triggers the mandatory dismissal timeline under ORS §135.747 is not attributable to Defendant. It arose from the court's own systemic notice failures and, critically, from the prolonged denial of counsel to Defendant at the precise juncture when civil compromise — the resolution track this case was actively pursuing — required an attorney to complete. The case was not abandoned. The potential resolution was derailed by the absence of the representation Defendant was constitutionally and statutorily entitled to receive. That distinction is legally significant under *Roberts* and it forecloses any basis on which the state could claim the delay was caused by Defendant's own conduct.

Compounding each of the foregoing grounds, discovery in this matter has never been established as complete. Some video materials were produced to the defense. However, the investigative record reflects that officers acknowledged the produced footage was partial — that additional surveillance materials existed and had been committed to be obtained in order to fully document the evidentiary basis for the charge. Whether that additional footage was ever secured, whether it was produced to the state, whether it was produced to any appointed counsel, and whether it has been preserved are questions that have never been answered. Whether those materials were obtained and withheld, obtained and not preserved, or never fully secured as the investigative record reflects was committed to is unknown to Defendant — and has remained unknown, without recourse, throughout 323

days of unrepresentation. Defendant cannot be expected to have resolved, or to have been required to resolve, a case in which the completeness of the evidentiary record has never been established.

II STATEMENT OF RELEVANT FACTS

A The Statutory Framework for Civil Compromise Was the Active Resolution Track in This Case

Under ORS §135.703 *et seq.*, certain criminal charges are eligible for resolution through civil compromise where the court determines, in its discretion, that the interests of justice are served by dismissal. The annotation to ORS §135.705 is direct: the power to compromise is vested in the court. The relevant legal question is not whether an alleged injured party subjectively consents to compromise, but whether any amount of injury remains unremedied under the applicable legal standard. *See* ORS §135.705. Oregon courts apply market value as the measure of property worth in theft-related proceedings. *See* ORS §164.205(5).

The charge as filed is predicated on an alleged value meeting a statutory threshold. The record produced to the defense does not establish that the property at issue carried a market value meeting that threshold at the time relevant to these proceedings. That predicate goes directly to whether the charge as filed is supported by the record, and to whether any amount of the nature cognizable under the civil compromise statute remains to be addressed — questions that required appointed counsel to investigate, develop, and present to the court. Neither investigation nor presentation occurred before counsel was lost.

B The Last Substantive Consultation With Appointed Counsel Confirmed the Civil Compromise Track Was Active and Unresolved

In the last substantive legal consultation Defendant received in this matter, with counsel appearing under the Early Case Resolution (ECR) program, the following was confirmed: (1) the civil compromise track under ORS §135.703 *et seq.* remained a viable and legally appropriate resolution avenue; (2) the alleged value of the property at issue was identified as a question requiring investigation, as the market value of the specific item — identifiable by its IMEI number in the investigative record — had not been established as meeting the threshold supporting the charge as filed; (3) Defendant did not accept the ECR

disposition offered at that time, on the ground that the civil compromise route had not been exhausted and the factual predicate for the charge as filed had not been established by the record; and (4) counsel acknowledged that if the alleged injured party confirmed in writing that no further amount remained to be addressed, a motion for civil compromise could be filed and the matter potentially resolved on that basis.

That consultation was the last legal assistance Defendant received in this case. The follow-up contact that counsel committed to undertaking was never made. The civil compromise motion that the consultation identified as a viable next step was never filed. Not because Defendant abandoned the resolution track — but because no attorney followed through, and no attorney was subsequently appointed in time to do so.

C Discovery in This Case Has Never Been Established as Complete

The investigative record in this case reflects that officers collected surveillance materials at the scene and acknowledged in the course of their investigation that the materials initially collected were partial — that additional footage existed and had been committed to be obtained in order to fully document the evidentiary basis for the charge. Some video materials were produced to the defense in the course of appointed counsel's representation. However, that production does not constitute or establish a complete evidentiary record. The investigative record's own acknowledgment that additional footage was to be obtained creates an unresolved question as to whether that additional material was ever secured, ever produced to the state, ever produced to appointed counsel, and whether it has been preserved.

The documentary record of discovery production in this case is as follows. On September 27, 2024, the legal assistant at the first appointed counsel's office (Harris Velázquez Gibbens) communicated to Defendant in writing: *"At this time, we have not received any additional discovery for your 24CR27775 case."* On October 22, 2024, the second appointed counsel's office (Cornerstone Law Group) produced a document identified as *"Redacted Discovery 24CR27775.pdf"*, described as the discovery received *"so far"* on the case — language that itself reflects an expectation of further production. On August 28, 2025

— following Defendant's formal written request for the complete client file covering both case numbers — the first appointed counsel responded only that *"most of what you are asking for either does not exist or is confidential work product"*: a blanket, undifferentiated statement that does not identify what specifically does or does not exist, does not address surveillance materials by category or by case number, and does not constitute a representation that all discoverable material in this case was produced or received.

The status of the additional surveillance materials the investigative record reflects were committed to be obtained is therefore unknown to Defendant. It is unknown whether those materials were ever secured by investigating officers, whether they were produced to the state, whether they were produced to any appointed counsel, whether they were withheld from the defense, or whether they have been preserved. Each possibility carries distinct legal consequences. Defendant has had no mechanism to investigate or resolve that question during 323 days without representation.

D The Mechanism of Counsel Deprivation: Contested Withdrawals Granted on Shifting Bases, One Resolved by Ex Parte Off-Record Proceedings

The denial of counsel in this matter did not arise from any conduct attributable to Defendant. It arose from two successive appointed counsel withdrawals, each contested by Defendant, each granted on a basis that differed from or expanded upon the basis in the filed motion without advance notice to Defendant, and each resulting in immediate placement on the OPDC list with no guaranteed timeline for new appointment. The transcript record of both proceedings establishes this pattern.

In the first withdrawal proceeding, Defendant was informed only minutes before the hearing — through communication between opposing counsel and the court — that the motion had already been granted in a companion case before a different judge. Defendant was not provided notice of that prior proceeding, was not present for it, and had no opportunity to be heard in it. The withdrawal in this case was then resolved in part on the basis of that prior ruling — a ruling Defendant had no notice of and no opportunity to contest. Defendant objected on the record, was heard briefly, and was overruled. The basis stated on the record at the hearing differed from the basis in the filed motion.

In the second withdrawal proceeding, counsel had filed a motion under RPC 1.16 — discretionary withdrawal. At the hearing itself, without prior notice to Defendant, counsel changed the stated basis to RPC 1.7 — mandatory withdrawal based on a claimed personal conflict of interest — and stated she was not comfortable disclosing the nature of that conflict on the record. The court then conducted an off-record, in-chambers conference with withdrawing counsel alone. Defendant expressly requested to be present and was denied. The prosecutor was also excluded. The court returned, announced it was granting the withdrawal based on the off-record conversation, and stated: *"There's nothing you can say to me that undoes that actual conflict"* — a ruling on a contested motion reached before Defendant was permitted to speak to the new, unnoticed basis. Defendant objected immediately and was denied a meaningful opportunity to be heard.

The court's ruling was based entirely on information received in a proceeding from which Defendant was excluded. Oregon Code of Judicial Conduct Rule 2.9 prohibits a judge from considering ex parte communications on the merits of a pending matter. The withdrawal motion was a pending contested matter. The information on which the ruling was made was received ex parte, off the record, in a communication shielded from Defendant under the claim of attorney-client privilege. Defendant received none of that information. She was given no opportunity to respond to it. And yet the ruling adverse to her right to continued representation was made on its basis.

That structural defect carries a specific legal consequence for these proceedings: the court cannot attribute the loss of counsel to Defendant's conduct on the basis of information received in a proceeding from which Defendant was constitutionally excluded. At the second withdrawal hearing, the court stated on the record that the conflict arose from *"the relationship that you have with Ms. Lasher that is frankly not appropriate"* and characterized the first withdrawal as arising from a similar dynamic. Those are judicial findings about Defendant's conduct, made on the basis of off-record, ex parte information that Defendant was excluded from hearing, responding to, or contesting. Attorney-client privilege exists to protect the client. It cannot be invoked to exclude the client from a

proceeding and then used to reach findings adverse to that same client. To permit the state to rely on those findings — in opposing mandatory dismissal — would be to allow privilege to operate as a sword against the very person it is designed to shield.

Nothing in the transcript record of either withdrawal proceeding reflects any conduct by Defendant that constituted independent grounds for withdrawal under the applicable RPC provisions. The bases stated were personal to counsel in both instances. Defendant contested both withdrawals on the record. The constitutional and ethical questions arising from the manner in which both withdrawals were granted are preserved expressly for all subsequent proceedings, including appeal. For purposes of this motion, the operative conclusion is narrow and inescapable: the loss of counsel on both occasions is not attributable to Defendant, and no finding to the contrary can be sustained on a record in which the only information supporting such a finding was obtained through proceedings that excluded Defendant.

E Defendant Has Been Without Counsel for 323 Days as of the Date of This Filing

Defendant has been without meaningful appointed representation in this matter since April 29, 2025 — 323 days as of the date of this filing. The absence of counsel was not a choice Defendant made. It was a circumstance the court and the state allowed to persist while the speedy trial clock continued to run. The civil compromise motion that could have resolved this case required an attorney to: investigate the valuation question; contact the alleged injured party through appropriate legal channels; frame the request in accordance with the applicable statutory standard; and file and argue the motion before this Court. Defendant, appearing without counsel, had no mechanism to compel performance of those tasks or to substitute for counsel in performing them. The discovery gap described in Section II.C above likewise required counsel to identify, demand, and if necessary move to compel production. That too was not accomplished — because there was no counsel to accomplish it. Neither circumstance is attributable to Defendant.

III LEGAL STANDARD

A ORS §135.747: The Mandatory Dismissal Statute

ORS §135.747 provides that if a defendant charged with a crime is not brought to trial within a reasonable period of time, the court shall order the dismissal of the accusatory instrument. The Oregon Supreme Court's decision in *State v. Roberts*, 374 Or. 821 (2026), addresses the application of that mandatory timeline and identifies limited circumstances warranting deeper inquiry before dismissal is ordered. Those limited circumstances do not apply here. They do not rescue the state's objection. And they do not alter the mandatory character of the dismissal this case requires.

B *Roberts* Does Not Support the State's Objection — It Forecloses It

Roberts identifies circumstances under which a court may conduct deeper inquiry before ordering dismissal under ORS §135.747. Those circumstances contemplate delay attributable to the defendant's own conduct. That predicate is absent here on the face of the record.

Any delay in these proceedings arose from independent and documented sources: (1) the court's systemic notice failures, as set forth in Defendant's concurrently filed Motion for Telephonic Appearance (Section II thereof, incorporated herein by reference), including the routing of all hearing notices to the Oregon Public Defense Commission in Salem rather than to Defendant, the unauthorized alteration of Defendant's contact information on December 30, 2025, and Defendant's landlord-caused inability to access physical mail; (2) the prolonged denial of counsel that left the civil compromise resolution track incomplete; and (3) the failure to establish complete discovery, which prevented the resolution track from being advanced and which Defendant had no mechanism to address without counsel.

A defendant cannot be held accountable for failing to appear at a hearing she had no notice of. A defendant cannot be charged with delay arising from the denial of the representation she was entitled to. And a defendant cannot be expected to have resolved a case in which she has never received complete discovery. Because the record does not support treating any delay in this case as Defendant-caused, the *Roberts* carve-outs are not implicated. The dismissal is mandatory under ORS §135.747. The state's objection has no

basis in law or fact.

C The State Cannot Demonstrate Prejudice From a Without-Prejudice Dismissal

The dismissal at issue is without prejudice. A without-prejudice dismissal does not terminate the prosecution. It does not extinguish the state's ability to refile charges. It does not bar any remedy the state might otherwise pursue. By definition, it is not prejudicial to the state in any legally cognizable sense. The state's objection cannot be sustained on a showing of prejudice that the nature of the dismissal itself forecloses as a matter of law.

IV THE DENIAL OF COUNSEL AND THE INCOMPLETE DISCOVERY RECORD INDEPENDENTLY AND CUMULATIVELY SUPPORT DISMISSAL

A The Denial of Counsel Directly Caused the Failure to Complete the Resolution Track

The civil compromise statute, ORS §135.703 *et seq.*, provides a mechanism for resolution of eligible criminal charges where the court, in its discretion, determines that the interests of justice are served by dismissal. The determination of whether the applicable standard has been met is a legal and evidentiary question — not a question of subjective consent. The court holds the power to compromise. ORS §135.705.

The procedural pathway to accomplish civil compromise in this case required counsel. Investigating the valuation question, contacting the alleged injured party through proper legal channels, and presenting the applicable standard to the court are not tasks an unrepresented defendant can accomplish without the tools, access, standing, and authority that appointed counsel possesses. Defendant was denied that counsel for a period that now independently triggers the mandatory dismissal under ORS §135.747. The denial of counsel is not merely a complaint about process. It is the direct and proximate cause of the outcome now before this Court. The state cannot simultaneously deny Defendant the representation she was entitled to and then object to the dismissal that the resulting delay compels. That position is legally untenable and constitutionally impermissible.

B The Incomplete Discovery Record Is an Independent Ground Supporting Dismissal and Defeating the State's Objection

Independent of the speedy trial and representation grounds, the state of discovery in this case is itself a basis supporting dismissal and independently defeating any claim that the state's objection should be sustained.

The investigative record reflects that officers collected surveillance materials at the scene and acknowledged that the materials initially collected were partial — that additional footage existed and had been committed to be obtained in order to fully document the evidentiary basis for the charge. As documented in Section II.C, some video materials were produced to the defense during the period of appointed representation, but that production does not constitute or establish a complete evidentiary record. The first appointed counsel's office confirmed in writing that no discovery had been received for this case as of September 27, 2024. The second appointed counsel's office described its October 22, 2024 production as what had been received *so far* — not as a complete production. The only response from first appointed counsel on the subject of the complete client file was a blanket statement that most of what was requested either does not exist or is work product — without differentiating by case, by category, or by item.

The status of the additional surveillance materials the investigative record reflects were committed to be obtained is unknown to Defendant and has remained unknown throughout 323 days of unrepresentation. Whether those materials were obtained and not produced to the defense, obtained and produced to counsel but not transmitted to Defendant, obtained and no longer preserved, or never fully secured as the investigative record reflects was committed to each carries distinct legal consequences. If obtained and withheld from the defense, that implicates the state's discovery obligations. If produced to counsel and not transmitted to Defendant, that compounds the representation failures already documented in this record. If no longer preserved, that raises independent questions about the integrity of the evidentiary record on which the charge rests.

Defendant cannot evaluate, challenge, or make use of materials she has never received and whose existence and status she has been without counsel to determine. A case cannot proceed against a defendant who has been denied both counsel and complete discovery for the duration of the period that now triggers mandatory dismissal under the statute. No objection by the state to a mandatory dismissal can be sustained on a record in which the state has not demonstrated that its own discovery obligations were met.

Defendant expressly preserves all rights arising from the incomplete state of discovery in this matter, including but not limited to any rights under *Brady v. Maryland*, 373 U.S. 83 (1963), *Giglio v. United States*, 405 U.S. 150 (1972), ORS §135.815, and Oregon Rule of Professional Conduct 3.8(d). Defendant expressly reserves the right to seek further relief on the basis of any materials not yet produced, once discovery is established as complete, including relief not presently known or ascertainable.

V RELIEF REQUESTED

Defendant respectfully requests that this Court:

1. Overrule the state's objection to dismissal and enter an order of dismissal pursuant to ORS §135.747 and *State v. Roberts*, 374 Or. 821 (2026), on the ground that the dismissal is mandatory and the delay giving rise to it is not attributable to Defendant.
2. In the alternative, order dismissal on civil compromise grounds pursuant to ORS §135.703 *et seq.*, on the ground that the statutory predicate for the charge as filed has not been established by the record, that no amount cognizable under the applicable standard has been identified as remaining, and that the denial of counsel foreclosed the completion of the resolution track this case was actively pursuing.
3. In the further alternative, or in addition to either of the foregoing, order complete disclosure of all discovery in this matter — including all surveillance materials referenced in the investigative record — prior to any further proceedings, and continue any hearing on the state's objection until that production is complete and Defendant has had a meaningful opportunity, with the assistance of appointed counsel, to review it.
4. Issue a written order with findings sufficient to preserve Defendant's appellate rights as to all issues raised herein.
5. Grant such further relief as the Court deems just and proper.

Nothing in this motion constitutes an admission of any fact underlying the charge in this or any related case. Defendant expressly preserves all rights, objections, and defenses, including but not limited to: speedy trial rights under Article I, Section 10 of the Oregon Constitution and the Sixth Amendment to the United States Constitution; the right to counsel under the Sixth and Fourteenth Amendments and Article I, Section 11 of the Oregon Constitution; due process rights under the Oregon and United States Constitutions; the right to notice of proceedings; all objections based on defective service and defective notice; all grounds for civil compromise under ORS §135.703 *et seq.*; and all rights arising from the incomplete state of discovery in this matter. The grant of any relief requested herein is without prejudice to any additional motion, argument, or evidentiary challenge Defendant may advance in any subsequent proceeding. The disclosure of any materials not yet produced may itself reveal grounds for additional relief not presently known to Defendant, and all such rights are expressly reserved.

Respectfully submitted,

/s/ AshLe' Penn
Defendant — In Propria Persona
17548 NW Springville Road, Unit 9
Portland, OR 97229
(424) 242-3374
ashlepenn.ap3@gmail.com

Date: March 18, 2026

CERTIFICATE OF SERVICE

I hereby certify that on the date set forth below, I served a true and correct copy of the foregoing **Defendant's Written Opposition to State's Objection to Dismissal and Motion to Dismiss Pursuant to ORS §135.747 and *State v. Roberts*, 374 Or. 821 (2026)** through OJD e-file and serve upon the following parties by the method indicated:

Washington County District Attorney's Office
150 N. First Avenue, Suite 300
Hillsboro, Oregon 97124
Method of Service: OJD eFiling and eServe

Washington County Circuit Court — Criminal Division
Trial Court Administrator Richard Melmer
150 N. First Avenue
Hillsboro, Oregon 97124
Method of Service: OJD eFiling

Presiding Judge Rebecca D. Guptill
Washington County Circuit Court
150 N. First Avenue
Hillsboro, Oregon 97124
Method of Service: OJD eFiling

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct.

Respectfully submitted,

/s/ AshLe' Penn

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Date: March 18, 2026